community to support India against Pakistan. Yet Delhi persisted with its historical–legalistic stance with Beijing. Perhaps this was because Nehru himself was a lawyer, and right through the nationalist struggle the Congress party had used legal–constitutional arguments against British rule even when it relied on Gandhian fasting and mass protests. By contrast, Mao was a strategist, and during the civil war and war with Japan he had constantly made hard choices in the fight against the Kuomintang and the Japanese. For him bargains and compromise more than forensic battles and argumentation were determinative.

After the Beijing 1961 meeting, as tensions boiled up along the border, both sides made a series of last-ditch offers and counter-offers. In June 1962, Delhi proposed to send a ministerial-level delegation to discuss all issues without preconditions (a significant change in its approach). In July 1962, it suggested that once tensions eased the two sides should hold discussions on the 1960–61 Officials' Reports. China rejected both initiatives – Foreign Minister Chen Yi saying that India should 'unequivocally and publicly' withdraw what he called 'all fictitious and false claims on Chinese territory' and that China could not be expected to withdraw from its own territories as a way of reducing tensions.[40] On 13 September, China responded with a three-point proposal which included the offer of talks on the 1960 Officials' Report. India accepted on condition that Chinese forces withdrew from incursions in the western sector. On 3 October, Beijing suggested talks on the entire border be held on 15 October. India accepted on 6 October, again on condition that Chinese intrusions, this time at the McMahon Line, were ended. Clearly, the two sides were quite far apart: India by and large insisting on Chinese withdrawals as a precondition to talks and China insisting on unconditional talks. On the very day that India conditionally accepted China's final invitation, Mao made the decision to go to war. Two weeks later, on 20 October, Chinese forces attacked.[41]

Causes